

25STLC08173 25STLC08173

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Case Number: 25STLC08173 Hearing Date: July 7, 2026 Dept: 26

TENTATIVE RULING:

Defendant U S Pacific

Construction, Inc.'s Motion to Set Aside Default and Default Judgment is

denied.

Analysis:

On October 27, 2025, Plaintiff Creditors

Adjustment Bureau, Inc. ("Plaintiff") filed the instant collections action

against Defendant U S Pacific Construction, Inc. ("Defendant"). Following

Defendant's failure to file a responsive pleading, the Court entered its

default on March 26, 2026.

On April 27, 2026, Defendant

filed a Substitution of Attorney, which was its first filing in the case.

Plaintiff filed its Request for Default Judgment two days later. Defendant then

filed an Objection to Plaintiff's Request for Court Judgment on May 1, 2026 and

a Cross-Complaint on May 5, 2026.

Plaintiff's Request for Default

Judgment was entered by the Court on May 7, 2026. Defendant then filed the

instant Motion to Set Aside Default and Default Judgment on May 11, 2026.

Plaintiff filed its opposition on June 22, 2026, to which Defendant replied on

June 23, 2026. Defendant filed an Answer on June 24, 2026 and a supplemental

brief and declaration on June 26, 2026.

Discussion

Vacate Entry of Default and Default Judgment as Void and/or

Voidable

Defendant first moves to vacate

the default judgment as void or voidable because it was entered after Defendant

appeared in this action. Code of Civil Procedure section 473,

subdivision (d) provides that "[t]he court may, on motion of either party

after notice to the other party, set aside any void judgment or order." (Code

Civ. Proc., § 473, subd. (d).) In California Capital Ins. Co. v. Hoehn

(2024) 17 Cal.5th 207, the California Supreme Court held that there is no

two-year limitation to challenge a void default judgment, regardless of whether

it is valid on its face. (California Capital Ins. Co. v. Hoehn (2024) 17

Cal.5th 207, 225-226.) A motion for relief under Code of Civil Procedure

section 473, subdivision (d), therefore, can be brought at any time.

In support of its request

to find the default judgment void, the Motion points to Code of Civil Procedure

section 585 for the proposition that default judgment could not have been

entered after Defendant filed a cross-complaint. Section 585, however,

specifically delineates the filings by which a defendant can prevent a default

judgment, and a cross-complaint is not one of those filings. Instead, the

statute refers to:

Answer,

demurrer, notice of motion to strike of the character specified in subdivision

(f), notice of motion to transfer pursuant to Section 396b, notice of motion to

dismiss pursuant to Article 2 (commencing with Section 583.210) of Chapter 1.5

of Title 8, notice of motion to quash service of summons or to stay or dismiss

the action pursuant to Section 418.10, or notice of the filing of a petition

for writ of mandate as provided in Section 418.10

(Code Civ. Proc., § 585,

subd. (a).) Defendant cites no authority for expanding this list to

cross-complaints. To the contrary, courts

have held that a party in default may not file a cross-complaint. (See *Dakota Payphone, LLC v. Alcaraz* (2011)

192 Cal. App. 4th 493, 502 (“Knowing that he was in default, [defendant] should

also have known that he could not file a cross-complaint,” and collecting

cases).)

Vacate

Default and Default Judgment Due to Mistake, Inadvertence, Surprise, or Excusable

Neglect

Defendant also argues

briefly that the default and default judgment should be vacated on account of

Defendant’s mistake, inadvertence, surprise, or excusable neglect. (Mot. at 9.)

Relief under Code of Civil Procedure section 473, subdivision (b) must be sought within a reasonable time, no more than six

months after entry of the order from which relief is sought, and must be

accompanied by an affidavit of fault attesting to the moving party’s mistake,

inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b);

English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.)

The Motion was timely

filed less than two months after entry of default, and is accompanied by a copy

of Defendant’s proposed Answer. (Motion, Liu Decl., Exh. G.) The moving papers, however, do not establish any

basis for relief under §473(b). The moving

papers attach the declaration of Defendant’s CEO, Tiezhu Liu, but the

declaration does not address mistake or excusable neglect. (Mot.. Liu Decl., ¶¶1-10.) Liu’s

declaration in support of the Reply brief states that, upon being served with

this action, Liu sent a settlement proposal to Plaintiff's counsel on February 9, 2026, and asked for an extension of time to respond, and that Plaintiff did not agree to settle. (Reply, Liu Decl., ¶¶3-6 and Exh. A.) The declarations do not include information sufficient for the Court to find that Defendant's failure to respond was excusable. They establish only that Defendant took some affirmative action in the case in February, and then nonetheless did not appear in the case until April 29, 2026.

The gap is unexplained. Without any explanation for the delay, the Court has no basis to determine that it was the result of mistake, inadvertence, surprise, or excusable neglect, as opposed to Defendant's inexcusable neglect of this action.

Supplemental Brief and

Declaration

Defendant filed an unauthorized supplemental brief and supporting declaration on June 26, 2026, in an attempt to add a new argument in support of the Motion to Vacate. Not only is filing a supplemental brief without leave not authorized by the Code of Civil Procedure, it also violates Plaintiff's right to due process by depriving it of timely notice of the basis of the Motion. (See Code Civ. Proc., §§ 1005, 1010.) The Court will not consider it.

Conclusion

Based on the foregoing, Defendant

U S Pacific Construction, Inc.'s Motion to Set Aside Default and Default

Judgment is denied.

Plaintiff to give notice.